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IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **ANDREW DERRICK, et al.,**	2:26-cv-00004-DJC-JDP **NOTICE OF MOTION AND MOTION TO QUASH INSUFFICIENT SERVICE OF PROCESS OR, IN THE ALTERNATIVE, DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF; DECLARATION OF DEPUTY ATTORNEY GENERAL ERICK J. RHOAN** Date: March 19, 2026 Time: 10:00 a.m. Courtroom: 9, 13th Floor Judge: The Honorable Jeremy D. Peterson Trial Date: N/A Action Filed: January 5, 2026

TO: PLAINTIFF, BRENDAN NGEHSI NEWANFORBI, IN PRO SE:

PLEASE TAKE NOTICE that Defendants Derrick and Noguchi's motion to quash Plaintiff's insufficient service of process, or alternatively, to dismiss Plaintiff's First Amended Complaint is set for hearing on Thursday, March 19, 2026, at 10:00 a.m., before the Honorable Jeremy D. Peterson, in Courtroom 9, on the Thirteenth Floor of the United States District Court, Eastern District, Robert T. Matsui Federal Courthouse, located at 501 I. Street, Sacramento, CA

95814. The main telephone number of the Court is (916) 930-4000, or you can access the Court's website at http://www.caed.uscourts.gov.

PLEASE TAKE FURTHER NOTICE that under Local Rule 230(b), this motion is submitted for oral argument unless otherwise ordered by the Court. Failure to file an opposition or to file a statement of non-opposition may be deemed a waiver of any opposition to the granting of the motion. Under Local Rule 230(b), Plaintiff has fourteen-days from the date of filing to file and serve an opposition or statement of non-opposition to Defendants' motion to quash or, in the alternative, dismiss.

This motion is based on this notice of motion and motion, the supporting memorandum of points and authorities, the pleadings, the declaration of Deputy Attorney General Erick J. Rhoan, the records, and files in this action, and such other matters as may properly come before the Court.

Dated: January 30, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
SEAN W. LODHOLZ
Supervising Deputy Attorney General

/s/ Erick J. Rhoan
ERICK J. RHOAN
Deputy Attorney General
Attorneys for Defendants Derrick and Noguchi

MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

Plaintiff Brendan Newanforbi, appearing pro se, alleges that Defendants Derrick and Noguchi retaliated against him because of his protected speech under the First Amendment, and violated his rights to equal protection and substantive due process under the Fourteenth Amendment. For the reasons stated below, Defendants' move to quash or, alternatively, to dismiss his First Amended Complaint.

Plaintiff improperly served his First Amended Complaint via mail upon the Office of the Attorney General. Defense counsel had not yet formally appeared in the case and the method of service was procedurally defective. Moreover, Plaintiff cannot state a viable claim for declaratory relief because this remedy is not available against Defendants. Plaintiff's substantive due process claim is also duplicative of his First Amendment claim and must be dismissed. Plaintiff also fails to state a viable First Amendment claim against Defendants because he fails to plead what his protected speech was, whether Defendant Noguchi retaliated because of that protected speech, or whether Defendant Noguchi personally participated in any constitutional deprivation Plaintiff alleges. Defendants' motion to quash insufficient service of process or, alternatively, to dismiss should, therefore, be granted.

STATEMENT OF FACTS

I. PLAINTIFF'S ALLEGATIONS.

Plaintiff is an African-American parolee who is required to attend the HOPE Program in Stockton, California as a mandatory condition of parole. (Pl.'s First Am. Compl. (FAC), at ⁋⁋ 1, 8, 12.) His assigned parole officer is Defendant Derrick. (*Id.* at ⁋ 9.) Defendant Derrick's supervisor is Defendant Noguchi. (*Id.* at ⁋ 11.)

In 2024, Plaintiff made verbal complaints and criticisms while attending HOPE group sessions. (*Id.* at ¶¶ 13–14.) Plaintiff stated that in his five years at HOPE, he was given disrespectful treatment by program staff and other participants, and voiced concerns with program conditions. (*Id.* at ¶ 13.) Plaintiff specifically stated that despite five years in the HOPE Program and timely completing his homework, it was routinely lost by program staff and he was subjected

to group resets due to repeated clinician turnover. (*Id.* at ¶ 14.) HOPE personnel labeled Plaintiff's speech "disruptive," which constituted misconduct, rather than address the substance of his concerns. (*Id.* at ¶ 15.)

In January 2025, Plaintiff was assigned to Defendant Derrick. (*Id.* at ¶ 16.) At their first meeting, Defendant Derrick told Plaintiff that his speech in HOPE group was disruptive and warned him that "it would not be good if you didn't stop." (*Id.* at ¶ 17.) When Plaintiff responded that he believed he had freedom of speech, Defendant Derrick replied, "You do not have freedom of speech. Not in HOPE group you don't." (*Id.* at ¶ 18.)

In March 2025, Plaintiff received an offer of employment from a FedEx Office for a Retail Customer Service Associate position, paying $20 per hour for approximately 30 hours per week. (*Id.* at ¶ 20.) The position required mandatory training in Modesto, California beginning on or about April 1, 2025. (*Id.* at ¶ 21.) Plaintiff requested a temporary accommodation from mandatory HOPE attendance to complete the training. (*Id.* at ¶ 22.) HOPE attendance rules required Plaintiff to arrive by 6:00 p.m., with late arrival constituting a parole violation, though a standard 10-minute grace period existed. (*Id.* at ¶¶ 22–23.) Plaintiff alleges that during March and April 2025, he relied on the grace period due to commute time from Modesto. (*Id.* at ¶ 23.)

In early April 2025, Defendant Derrick revoked Plaintiff's use of the 10-minute grace period, accusing Plaintiff of abusing it, and denied Plaintiff's request for accommodation. (*Id.* at ¶¶ 24–25.) Plaintiff alleges Defendant Derrick knew the denial would force him to choose between employment and compliance with parole conditions. (*Id.* at ¶ 25.) As a result, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, to avoid risking a parole violation and incarceration. (*Id.* at ¶ 26.) Plaintiff alleges this action undermined the rehabilitative purpose of parole and served no legitimate penological goal. (*Id.* at ¶ 27.)

In mid-2025, Defendant Derrick presented a negative report about Plaintiff at a Case Conference / Containment Team ("CTM") meeting. (*Id.* at ¶ 28.) Defendant Derrick's report was focused in substantial part on Plaintiff's speech and demeanor in the HOPE Program. (*Id.*) During the meeting, Plaintiff requested reassignment to a different parole agent based on Defendant Derrick's retaliatory conduct. (*Id.* at ¶ 30.) Defendant Noguchi denied the request. (*Id.*) Defendant

Derrick then recommended increasing Plaintiff's supervision level, which Defendant Noguchi initially rejected. (*Id.* at ¶ 31.) Defendant Noguchi had actual knowledge of Plaintiff's complaints, his reassignment request, and Defendant Derrick's attempted escalation of supervision. (*Id.* at ¶ 32.)

Despite approximately four and a half years of parole compliance without major incident, Defendant Derrick required Plaintiff to attend a PACT meeting, which was typically reserved for recently released parolees. (*Id.* at ¶¶ 33–34.) Plaintiff alleges this requirement constituted punitive escalation without legitimate supervisory purpose. (*Id.*)

In August 2025, Defendant Derrick imposed new parole conditions on Plaintiff, which were approved by Defendant Noguchi, adding restrictions not included in Plaintiff's original parole terms. (*Id.* at ¶ 35.) In November 2025, Defendant Noguchi prepared a Discharge Review Report based on input from Defendants Derrick and Palacios (the HOPE Program Director), recommending Plaintiff's continued retention on parole. (*Id.* at ¶¶ 36–37.) Plaintiff alleges this approval ratified prior retaliatory conduct. (*Id.*)

Following these events, Plaintiff's parole visits were increased from once monthly to twice monthly, despite no new parole violation. (*Id.* at ¶ 38.) On a later date, Plaintiff attempted to submit a written request for reassignment using a CDCR Form 22, but abandoned the request after Defendant Derrick confronted him and accused him of complaining. (*Id.* at ¶¶ 39–40.) Plaintiff alleges he became fearful of retaliation and experienced a chilling effect on his speech. (*Id.* at ¶¶ 41–43.)

After the CTM meeting and escalation of supervision, Plaintiff curtailed his participation and speech during HOPE group sessions out of fear that further complaints would be labeled disruptive and lead to additional adverse consequences. (*Id.* at ¶¶ 44–45.) Plaintiff alleges this self-censorship was noticed by others and mischaracterized as improvement, though it resulted from fear of retaliation rather than resolution of concerns. (*Id.* at ¶¶ 46–48.)

Throughout 2025, Defendants Derrick and Noguchi coordinated parole supervision decisions. (*Id.* at ¶¶ 49–50.) Plaintiff further alleges Defendants engaged in race-based disparate treatment, subjecting Black parolees, including Plaintiff, to harsher and more hostile enforcement

than similarly situated white parolees, without legitimate justification. (*Id.* at ¶¶ 52–60.)

II. CONDITIONS OF PAROLE.

Parole is one step removed from imprisonment. *Doe v. Harris*, 772 F.3d 563, 571 (9th Cir. 2014). "The essence of parole is release from prison, before the completion of sentence, on the condition that the prisoner abide by certain rules during the balance of the sentence." (*Morrissey v. Brewer*, 408 U.S. 471, 477 (1972).) Therefore, the government may impose restrictions on parolees' rights that are reasonably and necessarily related to the government's interests. *Doe*, 772 F.3d at 571 (internal citation omitted).

PROCEDURAL HISTORY

Plaintiff filed the original Complaint on January 5, 2026. (ECF No. 1.) Plaintiff purportedly served Defendants on January 6, 2025, by delivering the summons and Complaint to an "Agent Sosa," on the second floor of the Stockton "parole office." (ECF No. 4.) No other service appears attempted.

On January 12, 2026, Plaintiff filed a First Amended Complaint (FAC). (ECF No. 5.) On January 13, 2026, Plaintiff attempted service by mailing a copy of the FAC to the Office of Attorney General. (ECF No. 7.)

Defendants' instant motion is their first appearance in this litigation.

LEGAL STANDARDS

I. INSUFFICIENT SERVICE OF PROCESS.

A party may have to dismiss an action for insufficient service of process. Fed. R. Civ. P. 12(b)(5). Federal courts lack jurisdiction over a defendant if the defendant has not been served properly under Federal Rule of Civil Procedure 4. *Direct Mail Specialists, Inc. v. Eclat Computerized Tech., Inc.*, 840 F.2d 685, 688 (9th Cir. 1988). "Once service is challenged, plaintiffs bear the burden of establishing that service was valid under Rule 4." *Brockmeyer v. May*, 383 F.3d 798, 801 (9th Cir. 2004).

Rule 4 is a flexible rule that should be liberally construed so long as a party receives sufficient notice of the complaint. *Direct Mail Specialists*, 840 F.2d at 688 (citations and internal quotations omitted). However, "substantial compliance with Rule 4" is required and "neither

actual notice nor simply naming the defendant in the complaint will provide personal jurisdiction." *Id.* Failure to object to insufficient service of process before filing an answer waives any defects in service. Fed. R. Civ. P. 12(h)(1).

II. FAILURE TO STATE A VIABLE CLAIM.

As stated below, the First Amended Complaint also fails to state viable claims under Rule 12(b)(6). The Rule 12(b)(6) standard requires a complaint to "contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face," in order to survive a motion to dismiss. *Wilhelm v. Rotman*, 680 F.3d 1113, 1121 (9th Cir. 2012) (citing *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). This plausibility standard "asks for more than a sheer possibility that a defendant has acted unlawfully." *Ashcroft*, 556 U.S. at 678. A complaint must therefore contain allegations with respect to each material element necessary to establish a right to relief that is above the speculative level; a formulaic recitation of a cause of action's elements is inadequate. *Bell v. Atlantic Corp. v. Twombly*, 550 U.S. 544, 555, 562-63 (2007).

ARGUMENT

I. PLAINTIFF'S ATTEMPTED SERVICE ON THE ATTORNEY GENERAL'S OFFICE IS DEFECTIVE.

Under Rule 4(e), plaintiffs may effectuate proper service in three ways: (1) following California law for serving a summons and complaint in an action of the state court, where the district court is located; (2) personally serving the defendant with the summons and complaint; (3) "substitute service" by leaving a copy of the summons and complaint at the defendant's dwelling or place of abode with someone who resides there, is over the age of 18, and has suitable discretion; or (4) by delivering the summons and complaint to agent authorized to receive service of process. Fed. R. Civ. P. 4(e).

"Pro se litigants must follow the same rules of procedure that govern other litigants." *King v. Atiyeh*, 814 F.2d 565, 567 (9th Cir. 1987), overruled in part on other grounds, *Lacey v. Maricopa County*, 693 F.3d 896 (2012).

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A. Plaintiff's Attempted Service on the Attorney General's Office by Mail on January 13, 2026, Was Ineffective.

California law authorizes service by mail if the summons and complaint are mailed to the Defendants along with two copies of a request to acknowledge receipt. Cal. Code Civ. Proc., § 415.30(a). If a defendant signs the acknowledgement, it waives further service of process. Cal. Code Civ. Proc., § 415.30(b). Service by mail is deemed complete on the date the defendant signs the acknowledgement and returns the notice to the sender. Cal. Code Civ. Proc., § 415.30(c). Defendant then has 30 days from the date of signing to respond to the complaint. Cal. Code Civ. Proc., § 415.30(c); *Wagner v. City of South Pasadena*, 78 Cal.App.4th 943, 948-50 (2000). Failure to provide proof of proper mail service, including executed notices of acknowledgment of receipt, deprives the Court of jurisdiction. *Guardianship of Debbie V.*, 182 Cal.App.3d 781, 787-88 (1986). Additionally, mail service on a party's attorney before the attorney has made a formal appearance in the case does not constitute valid service. *Est. of Moss*, 204 Cal. App. 4th 521, 533–34 (2012); *Macri v. Carson Tahoe Hosp., Inc.*, 247 Cal. App. 2d 63, 65 (1966).

Here, Plaintiff's attempted service by mail on the Attorney General's Office is invalid. Plaintiff's proof of mail service does not attach Defendants' signed Notice of Acknowledgment. (ECF No. 7.) Nor does the proof of service show that he attempted to mail-serve the Defendants themselves. (*Id.*) The copy of the FAC served on the Attorney General's Office does not attach a summons or Notice of Acknowledgement and Receipt. (Rhoan Decl., at ¶¶ 2-4.) Moreover, defense counsel has not formally appeared in this case and does not do so by challenging service. *United States v. Marwan Shipping & Trading*, 2008 WL 11470935, at *2 n. 2 (D. Guam Mar. 27, 2008). Based on the foregoing, Plaintiff's service of the First Amended Complaint is invalid.[1]

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[1] Plaintiff's original complaint was improperly served as well. Plaintiff's proof of personal service shows the summons, and the complaint was left with "Mrs. Agent Sosa," at the Stockton "parole office." (ECF No. 4.) Plaintiff, however, provides no evidence that he attempted personal service on Defendants first before resorting to substituted service. Cal. Civ. Code Proc. § 415.20(b); *Evartt v. Superior Court*, 89 Cal.App.3d 795, 801 (1979); *Burchett v. City of Newport Beach*, 33 Cal. App. 4th 1472, 1477 (1995) (no diligence shown where plaintiff left papers with city's deputy clerk rather than attempting to personally service city officials first).

II. PLAINTIFF'S FIRST AMENDED COMPLAINT FAILS TO STATE A VIABLE CLAIM.

A. Plaintiff Cannot Seek Declaratory Relief Against Defendants in Their Individual Capacity.

Plaintiff's FAC seeks declaratory relief against Defendants in their individual capacities. (FAC, at ¶¶ 7, 9, 11.) Declaratory relief is unavailable against defendants sued in their individual capacities. *Flores v. Von Kleist*, 739 F.Supp.2d 1236, 1260 (E.D. Cal. 2010). Plaintiff, therefore, fails to state a viable claim for declaratory relief.

B. Plaintiff Fails to State a Viable Substantive Due Process Claim.

If a particular amendment provides an explicit textual source of constitutional protection against a particular sort of government behavior, that Amendment, not the more generalized notion of substantive due process must be the guide for analyzing these claims. *Albright v. Oliver*, 510 U.S. 266 (1994); *Graham v. Connor*, 490 U.S. 386, 395 (1989). This bar applies even when the plaintiff characterizes the same conduct through a different doctrinal lens. *Brittain v. Hansen*, 451 F.3d 982, 990-91 (9th Cir. 2006).

Plaintiff's allegations underlying his 14th Amendment claims are the same as the ones underlying his First Amendment claims. (FAC, at ¶¶ 75-82.) Plaintiff alleges that Defendants violated his substantive due process rights by denying his employment accommodation, revoking his 10-minute grace periods, raising the frequency of supervision, forcing PACT attendance, imposing new parole conditions, and drafting a negative Discharge Review Report based on Plaintiff's "disruptive" conduct. (*Id.* at ¶¶ 24-24, 33-38, 78.) These same actions were purportedly taken in retaliation to Plaintiff's allegedly protected speech. (*Id.* at ¶¶ 3, 17-19, 29.) Plaintiff's substantive due process allegations, therefore, are duplicative of his First Amendment claims and should be dismissed with prejudice.

C. Plaintiff Fails to State a Viable First Amendment Retaliation Claim.

Plaintiff must establish five elements to state a First Amendment retaliation claim against Defendants: (1) Plaintiff engaged in protected conduct; (2) Defendants took adverse action against Plaintiff; (3) the adverse action was caused by the protected conduct; (4) the adverse action would chill a person of ordinary firmness from engaging in protected conduct; and (5) the

action did not reasonably advance a legitimate correctional goal. *Rhodes v. Robinson*, 408 F.3d 559, 567-68 (9th Cir. 2005).

1. Plaintiff Does Not Plausibly Plead He Engaged in Protected Conduct.

Plaintiff must plead that his verbal disputes with HOPE staff by which Defendants retaliated against him for were protected conduct. *Entler v. Gregoire*, 872 F.3d 1031, 1039-40 (9th Cir. 2017) (threats to sue or file grievances are protected First Amendment conduct). Purely disruptive or insubordinate conduct is not protected. *Lockett v. Suardini*, 526 F.3d 866, 874 (6th Cir. 2008) (inmate's insolent remarks to prison hearing officer unprotected); *Loftis v. Montes*, 2019 WL 3806388, at *3 (C.D. Cal. June 25, 2019), *report and recommendation adopted,* 2019 WL 3802187 (C.D. Cal. Aug. 13, 2019).

Here, Plaintiff alleges his First Amendment retaliation claim is based on "expressing complaints, objections, and concerns regarding his treatment in a mandatory parole program and by state actors." (FAC, at ⁋ 62.) However, the FAC shows that Plaintiff engaged in disruptive in-program confrontations that HOPE staff characterized as disruptive. (*Id.* at ⁋⁋ 13-15.) Plaintiff's only description of his speech was his generalized dissatisfaction with HOPE staffs' treatment and program administration, not anything related to government officials or decisionmakers outside the group setting. (*Id.*) Plaintiff also does not allege what specific speech he made to Defendants Derrick or Noguchi that they retaliated against. Plaintiff simply states this speech pertained to matters of public concern but does not identify which matters or how it concerned the public. Because Plaintiff fails to plausibly allege protected activity, Defendants' motion to dismiss should be granted.

2. Plaintiff Fails to Plead Causation Against Defendant Noguchi.

Retaliation requires facts plausibly showing that a defendant acted adversely against a plaintiff because of the plaintiff's protected speech. *Rhodes*, 408 F.3d at 567-68.

Here, the FAC alleges Defendant Noguchi denied Plaintiff's request for reassignment at the CTM. (FAC, at ⁋⁋ 28-30.) Plaintiff does not allege that Defendant Noguchi denied the request because of any protected speech. Plaintiff's only speech at the CTM was complaining about Defendant Derrick's conduct and request for reassignment. (*Id.* at ⁋ 30.) Plaintiff does not plead if

Defendant Noguchi based his denial on anything else other than Plaintiff's bare request at that moment. Also, when Defendant Derrick recommended increasing Plaintiff's supervision level, Defendant Noguchi denied it. (*Id.* at ⁋ 31.) This Court should, therefore, dismiss Plaintiff's retaliation claim against Defendant Noguchi.

3. Plaintiff Fails to Plausibly Allege Defendant Noguchi's Personal Participation as a Supervising Agent.

A supervisor is not liable under section 1983 on a respondeat superior theory. *Ashcroft v. Iqbal*, 556 U.S. at 676. Plaintiff must plead facts showing Defendant Noguchi's own culpable action or inaction in the constitutional deprivation. *Starr v. Baca*, 652 F.3d 1202, 1207-08 (9th Cir. 2011). Plausibility requires nonconclusory allegations that the supervisor knew of unconstitutional conduct and failed to act to prevent it (or set in motion a series of acts he knew would cause constitutional injury), not merely that he held a supervisory role or approved paperwork. *Id.* at 1207-08.

Aside from denying Plaintiff's request for reassignment, Plaintiff's remaining allegations fail to plausibly suggest Defendant Noguchi's personal participation in any unconstitutional conduct. The FAC pleads that Defendant Noguchi attended a 2025 CTM, signed off on unspecified "new parole conditions" in August 2025, and reviewed/approved a Discharge Review Report (based, in part, on Defendant Palacios' classification of Plaintiff's behavior as disruptive) in November 2025. (FAC, at ⁋⁋ 32, 35, 37.) Plaintiff also fails to establish whether or not Defendants Derrick and Palacios' statements about Plaintiff being disruptive were actually false. Without additional context, Defendant Noguchi's actions appear to be day-to-day parole supervision and routine administrative tasks. (*Id.*) Because Plaintiff fails to plead Defendant Noguchi's personal participation, Plaintiff's retaliation claim against Defendant Noguchi fails. Defendants' motion to dismiss should, therefore, be granted.

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CONCLUSION

Defendants respectfully request that the Court grant their motion to quash Plaintiff's insufficient service of process or, alternatively, dismiss Plaintiff's First Amended Complaint for failure to state a claim.

Dated: January 30, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
SEAN W. LODHOLZ
Supervising Deputy Attorney General

/s/ Erick J. Rhoan
ERICK J. RHOAN
Deputy Attorney General
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IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **ANDREW DERRICK, et al.,**	2:26-cv-00004-DJC-JDP **DECLARATION OF DEPUTY ATTORNEY GENERAL ERICK J. RHOAN IN SUPPORT OF DEFENDANTS' MOTION TO QUASH INSUFFICIENT SERVICE OF PROCESS OR, IN THE ALTERNATIVE, DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT** Date: March 19, 2026 Time: 10:00 a.m. Courtroom: 9, 13th Floor Judge: The Honorable Jeremy D. Peterson Trial Date: N/A Action Filed: January 5, 2026

I, Erick J. Rhoan, declare:

1. I am an attorney admitted to practice in the California and before this Court. I am employed by the California Attorney General's Office as a Deputy Attorney General in the Correctional Law Section. I am representing Defendants Derrick and Noguchi in this matter.

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2. On January 22, 2026, I was forwarded a copy of Plaintiff's First Amended Complaint from our Sacramento office's docketing unit that Plaintiff had served on our office via mail.

3. I reviewed Plaintiff's First Amended Complaint and did not see any attached Notices of Acknowledgement of Receipt.

4. Attached to the First Amendment Complaint were three proofs of service purporting to represent that Plaintiff previously attempted substituted service on Defendants. Defendants Derrick and Noguchi were not personally served, but service was attempted via "Agent Mrs Sosa," on the "second floor of the parole office."

5. A true and correct copy of Plaintiff's mail-served First Amended Complaint with its attachments and a scanned copy of the service envelope are attached to my declaration as Exhibit A.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: January 30, 2026

/s/ Erick J. Rhoan
ERICK J. RHOAN
Deputy Attorney General

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Exhibit A

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,
Plaintiff,
v.
AGENT A. DERRICK #6910, Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;
KATIE PALACIOS, Director,
HOPE Program (Stockton, California),
in her individual capacity;
AGENT G. NOGUCHI #7284, Supervising Parole Agent,
California Department of Corrections and Rehabilitation,
in his individual capacity;
Defendants.
Case No.: 2:26-cv-00004-DJC-JDP

FIRST AMENDED COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF (42 U.S.C. § 1983 – JURY TRIAL DEMANDED)

This First Amended Complaint supersedes the original Complaint filed January 5, 2026.

I. INTRODUCTION

1. This is a civil rights action for damages and declaratory relief under 42 U.S.C. § 1983 arising from retaliation for protected speech, race-based disparate treatment, and arbitrary abuse of supervisory power by parole officials and a state-affiliated mandatory reentry program.

2. Plaintiff BRENDAN NGEHSI NEWANFORBI, a Black male, alleges that Defendants used parole authority and mandatory program requirements to punish constitutionally protected expression, deny employment opportunities, escalate supervision without legitimate basis, and ratify unconstitutional conduct at the supervisory level.

3. Defendant Agent A. Derrick explicitly told Plaintiff: "You do not have freedom of speech. Not in HOPE group you don't." This statement, made at their first meeting in or about January 2025, directly linked Plaintiff's protected speech to threatened adverse consequences and would chill a person of ordinary firmness from continuing to speak.

4. The rights violated were clearly established at the time of Defendants' conduct, and no reasonable parole official could have believed the conduct alleged was lawful. See *Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995) (holding that "the prohibition against retaliatory punishment is 'clearly established law' in the Ninth Circuit, for qualified immunity purposes").

II. JURISDICTION AND VENUE

5. This Court has original jurisdiction over Plaintiff's federal civil rights claims pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3).

6. Venue is proper in the Eastern District of California pursuant to 28 U.S.C. § 1391(b) because a substantial part of the events or omissions giving rise to the claims occurred in this District, and Defendants perform their official duties within this District.

7. Declaratory relief is authorized under 28 U.S.C. §§ 2201–2202.

III. PARTIES

8. Plaintiff BRENDAN NGEHSI NEWANFORBI is a Black male and a resident of Stockton, California. At all times relevant to this Complaint, Plaintiff was subject to parole

supervision by the California Department of Corrections and Rehabilitation ("CDCR") and was required to participate in the HOPE Program as a mandatory condition of parole.

9. Defendant AGENT A. DERRICK #6910 was at all relevant times a Parole Agent employed by CDCR and assigned to supervise Plaintiff. Defendant Derrick acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Derrick is sued in his individual capacity.

10. Defendant KATIE PALACIOS was at all relevant times the Director of the HOPE Program at the Stockton, California facility. The HOPE Program is a mandatory parole reentry program operated in coordination with CDCR. Defendant Palacios acted jointly with parole officials, exercised authority over Plaintiff's mandatory program participation, communicated directly with parole agents regarding Plaintiff's conduct and compliance, and made recommendations affecting Plaintiff's parole status. Defendant Palacios therefore acted under color of state law within the meaning of 42 U.S.C. § 1983. See *Rawson v. Recovery Innovations, Inc.*, 975 F.3d 742, 751–53 (9th Cir. 2020). Defendant Palacios is sued in her individual capacity.

11. Defendant AGENT G. NOGUCHI #7284 was at all relevant times a Supervising Parole Agent employed by CDCR with authority to review, approve, reject, or modify parole actions, conditions, and discharge determinations. Defendant Noguchi works from the same parole office building as Defendant Derrick, and the two engage in ongoing coordination regarding parolees under their supervision. Defendant Noguchi personally participated in the constitutional violations alleged herein by: (a) attending the Case Conference/Containment Team Meeting ("CTM") at which Plaintiff complained of retaliation and requested reassignment; (b) signing and imposing new parole conditions on Plaintiff in August 2025; and (c) reviewing and

approving the Discharge Review Report that relied on input from Defendants Derrick and Palacios. Defendant Noguchi acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendant Noguchi is sued in his individual capacity.

IV. FACTUAL ALLEGATIONS

A. Protected Speech in Mandatory HOPE Program

12. As a mandatory condition of parole, Plaintiff was required to attend HOPE Program group sessions at the Stockton facility.

13. In 2024, during HOPE group sessions, Plaintiff engaged in verbal expression and complaints regarding disrespectful treatment by program staff and other participants, as well as concerns about program conditions. Plaintiff's speech concerned his treatment by state actors and was constitutionally protected activity addressing matters of public concern.

14. Plaintiff raised specific concerns including: that he had remained in the HOPE group for approximately five years despite having completed all assigned homework multiple times; that homework was frequently lost by program staff; and that Plaintiff was subjected to group resets due to repeated clinician turnover.

15. Rather than address misconduct by other participants or Plaintiff's legitimate concerns, HOPE Program personnel, including Defendant Palacios, characterized Plaintiff's protected speech as "disruptive," establishing a narrative that equated constitutionally protected complaints with misconduct.

B. Assignment to Agent Derrick and Explicit Speech Suppression

16. In or about January 2025, Plaintiff was assigned to Defendant Agent A. Derrick as his parole agent.

17. At their first meeting, Defendant Derrick stated that Plaintiff's speech in HOPE group was "disruptive" and warned Plaintiff that "it would not be good for you if you didn't stop."

18. When Plaintiff stated that he believed he had freedom of speech, Defendant Derrick replied: "You do not have freedom of speech. Not in HOPE group you don't."

19. This explicit statement constitutes direct evidence of retaliatory motive and would chill a person of ordinary firmness from continuing to engage in protected speech. See *Sampson v. County of Los Angeles*, 974 F.3d 1012, 1020 (9th Cir. 2020) (holding it "clearly established" that "the First Amendment prohibits public officials from threatening... to chill protected speech out of retaliatory animus").

C. Denial of Employment Training and Economic Harm

20. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

21. The FedEx Office position required Plaintiff to complete mandatory training at a location in Modesto, California, beginning on or about April 1, 2025.

22. Plaintiff requested a temporary accommodation from mandatory HOPE Program attendance in order to complete the required job training. The HOPE Program's attendance rules

required Plaintiff to be present by 6:00 p.m.; late arrival resulted in denial of entry and constituted a parole violation.

23. The HOPE Program maintains a standard 10-minute grace period permitting late arrival without violation. During March and April 2025, Plaintiff legitimately utilized this grace period due to commute time required to travel from FedEx training in Modesto to the HOPE Program in Stockton.

24. Defendants Derrick and Palacios conferred and jointly decided to revoke Plaintiff's grace period. In or about early April 2025, Defendant Derrick informed Plaintiff that the 10-minute grace period was being removed, stating: "You are clearly abusing the 10-minute as an excuse to show up late." This revocation forced Plaintiff to choose between his employment and strict compliance with parole conditions.

25. Defendant Derrick and Defendant Palacios jointly denied Plaintiff's request for accommodation, citing prior accommodations and labeling the request "excessive," despite knowing that the denial would force Plaintiff to choose between his employment and compliance with parole conditions.

26. As a direct result of Defendants' denial of accommodation, revocation of the standard grace period, and coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration.

27. The denial of accommodation directly contravened the stated rehabilitative purpose of parole supervision and the HOPE Program, which is designed to facilitate

employment and successful reintegration. No legitimate penological goal was advanced by forcing Plaintiff to forfeit lawful employment.

D. CTM Meeting, Request for New Parole Agent, and Escalation

28. At a Case Conference/Containment Team Meeting ("CTM") held in mid-2025, Defendant Derrick presented a negative oral report regarding Plaintiff that focused in substantial part on Plaintiff's speech and demeanor in the HOPE Program.

29. Defendant Palacios characterized Plaintiff as a "ringleader" whose speech encouraged others to speak, further tying Plaintiff's constitutionally protected expression to adverse action and demonstrating that Defendants targeted Plaintiff specifically because of the persuasive effect of his speech.

30. During the CTM meeting, Plaintiff expressly requested a change of parole agent, citing Defendant Derrick's retaliatory conduct and explicit statements regarding Plaintiff's speech. The supervising agent present denied the request on the spot, despite being made aware of the conflict.

31. Defendant Derrick then recommended increasing Plaintiff's supervision level. The supervising agent initially rejected this recommendation, stating that Defendant Derrick should focus on other parolees.

32. Defendant Noguchi was present at this CTM meeting and thus had actual knowledge of: (a) Plaintiff's complaints regarding retaliation; (b) Plaintiff's request for reassignment to a different parole agent; and (c) Defendant Derrick's attempted escalation of supervision.

E. Forced PACT Meeting Attendance

33. Despite having been on parole supervision without major incident for approximately four and a half years, Defendant Derrick required Plaintiff to attend a PACT (Parolee Accountability and Compliance Team) meeting at the parole office. PACT meetings are typically reserved exclusively for parolees recently released from prison.

34. This requirement served no legitimate supervisory or rehabilitative purpose given Plaintiff's extensive compliance history and duration on parole, and constituted additional punitive escalation of Plaintiff's conditions.

F. Supervisory Ratification and Addition of New Conditions

35. In or about August 2025, Defendant Derrick presented Plaintiff with new parole conditions that were signed by Defendant Noguchi. These new conditions added restrictions not contained in Plaintiff's original terms of parole.

36. In or about November 2025, a Discharge Review Report was prepared that relied on input from Defendants Derrick and Palacios, including their characterizations of Plaintiff as "disruptive" and a "ringleader." The report recommended continued retention on parole.

37. Defendant Noguchi reviewed and approved the Discharge Review Report, thereby ratifying the underlying retaliatory and arbitrary conduct of Defendants Derrick and Palacios. See *Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011) (supervisory liability exists where supervisor "acquiesce[s]" in constitutional deprivation or acts with "reckless or callous indifference" to rights of others).

38. Despite the absence of any new parole violation, Plaintiff was subsequently subjected to twice-monthly parole visits (increased from once per month), substantially increasing the intrusion on Plaintiff's liberty and heightening the risk of technical violations.

G. Chilling Effect on Protected Speech

39. On or about the date Plaintiff was summoned to the parole office to submit to a buccal swab for alcohol testing, Plaintiff entered the parole building intending to engage in protected activity by formally requesting a change of parole agent. Plaintiff obtained a CDCR Form 22 request form from the front desk and proceeded to the second floor to await Defendant Derrick.

40. When Defendant Derrick arrived, he immediately pointed to the Form 22 and asked Plaintiff, "What's that for?" Defendant Derrick then stated, "You're just finding something to complain about, huh?" Plaintiff became visibly nervous and found himself unable to respond. Plaintiff stuttered and could not articulate his request, despite having intended to submit it in writing. Plaintiff did not hand Defendant Derrick the Form 22 and abandoned the request due to fear of further retaliation.

41. Following this incident, Plaintiff experienced a chilling effect on his willingness to speak, complain, or assert his rights in interactions with Defendant Derrick. During subsequent home visits, Plaintiff's heart rate would increase, his hands would visibly shake, and he would experience acute anxiety. Defendant Derrick routinely questioned Plaintiff in an aggressive and argumentative manner and dismissed Plaintiff's responses as untruthful.

42. As a result, Plaintiff began limiting his speech during parole interactions, providing shorter and more compliant answers, avoiding questions or explanations, and refraining from raising concerns or objections. Plaintiff became increasingly quiet during visits in an effort to avoid escalation and to shorten the encounters, particularly when family members were present and Defendant Derrick raised his voice inside Plaintiff's home.

43. Plaintiff's altered behavior was a direct response to Defendant Derrick's conduct and constituted a concrete chilling of Plaintiff's protected speech. Plaintiff curtailed his expression, abandoned written complaints, and refrained from engaging in advocacy or criticism out of fear of retaliation, escalation of supervision, or incarceration.

44. Following the containment meeting, Plaintiff experienced a further chilling of his protected speech within the HOPE program. Shortly thereafter, Plaintiff's assigned clinician abruptly resigned, and Defendant Palacios assumed responsibility for facilitating Plaintiff's group sessions.

45. After the containment meeting and the escalation of Plaintiff's supervision, Plaintiff began engaging in protected activity during HOPE group sessions less and less. Prior to that time, Plaintiff had regularly voiced concerns regarding the structure and administration of the HOPE program. Following the containment meeting, Plaintiff curtailed such speech, limited his participation, refrained from raising concerns or criticisms, and avoided advocating for himself during group sessions out of fear that further speech would be labeled "disruptive" and lead to additional adverse consequences on parole.

46. Plaintiff's reduced participation was noticed by others. Defendant Palacios repeatedly remarked during group sessions that Plaintiff was "doing better," and stated to

Plaintiff that she had been "putting in a good word" for him with his parole agent when asked for status updates. A subsequent clinician, Ms. Jackie, also stated during group sessions that she had observed a noticeable change in Plaintiff's behavior. Other HOPE group participants likewise noticed that Plaintiff spoke less and raised fewer concerns.

47. These group sessions are conducted in rooms equipped with cameras, and Defendant Palacios's statements and Plaintiff's reduced participation occurred in view of those recordings.

48. Plaintiff's change in behavior was not the result of resolved concerns, but rather a deliberate effort to avoid retaliation, escalation of supervision, or punitive consequences. Plaintiff's self-censorship within the HOPE program constituted a concrete chilling of his protected speech.

H. Deliberative Process and Coordination Among Defendants

49. Defendants Derrick and Palacios, along with other HOPE Program staff, routinely met to discuss parolees, including Plaintiff, providing ample opportunity for deliberation on supervision decisions, program compliance, and accommodations. These discussions occurred prior to, during, and after Case Conference/Containment Team Meetings (CTMs).

50. Defendant Derrick and Defendant Noguchi, working from the same parole office building, engaged in ongoing coordination regarding parolee supervision, further evidencing deliberate rather than impulsive decision-making.

51. During this same period (2025), Defendant Palacios exercised discretion to arbitrarily reduce another parolee's mandatory HOPE group attendance from twice-weekly to

once-weekly, demonstrating that flexible accommodations were available within the program yet were knowingly withheld from Plaintiff despite comparable or lesser need.

I. Race-Based Disparate Treatment and Corroborated Comparators

52. Defendants' conduct reflects a pattern of intentional race-based disparate treatment in parole supervision, granting discretionary leniency to white parolees while imposing hostile, escalatory enforcement on Black parolees, including Plaintiff, without legitimate penological justification.

53. Comparator A is a white male parolee supervised by Defendant Derrick in the same Stockton parole office, under identical HOPE Program requirements, supervision level, and timeframe (at least January 2025 to present), with a comparable compliance record and no material differences from Plaintiff. Comparator A received respectful treatment and multiple discretionary accommodations from Defendant Derrick.

54. Specifically, Comparator A received: brief home visits lasting approximately one to two minutes; approval for an overnight trip to Jackson, California (including casino activities) with his girlfriend around late December 2025 or early January 2026, without reprimand, escalation, or additional conditions; and assistance from Defendant Derrick in preparing a CDCR Form 602 grievance to address a parole condition. Defendant Derrick did not speak to Comparator A in a disrespectful manner, did not threaten him with violations, and did not escalate his supervision level.

55. Comparator B is a Black male parolee who was supervised by Defendant Derrick in the same Stockton parole office beginning in early 2023. Comparator B was subject to

standard parole supervision conditions during an overlapping timeframe with Plaintiff and maintained contact with his parole agent as required.

56. Comparator B experienced adversarial and hostile treatment from Defendant Derrick, including: extreme disparaging remarks by Defendant Derrick expressing hostility toward certain offenders, stating words to the effect that such individuals "should be lined up and shot"; arbitrary parole violations including being cited as "out of bounds" while present at public parks during family gatherings, resulting in arrest and custody; unannounced public confrontations perceived as harassing and intimidating; and overall conduct that resulted in significant stress and adverse consequences to Comparator B's liberty.

57. As a result of Defendant Derrick's treatment, Comparator B limited his communication with Defendant Derrick and avoided raising concerns about his supervision out of fear that doing so would result in further adverse action. This mirrors Plaintiff's chilling effect.

58. No legitimate factors—including risk factors or penological concerns—explain the disparity in treatment between Plaintiff and similarly situated white parolees. Plaintiff possesses sworn declarations executed under penalty of perjury pursuant to 28 U.S.C. § 1746 from both Comparator A and Comparator B, based on their personal knowledge, corroborating the pattern of racial disparity. These declarants have expressed willingness to testify under oath. Details will be provided in discovery or upon court order.

59. The pattern of favorable treatment toward white parolees and harsh, hostile treatment toward Black parolees, combined with the pretextual justifications offered by Defendants, supports an inference of intentional discrimination under the factors set forth in

Village of Arlington Heights v. Metropolitan Housing Development Corp., 429 U.S. 252, 265–68 (1977).

60. No reasonable official could believe such racially disparate enforcement was lawful. See *Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th Cir. 2013); *Serrano v. Francis*, 345 F.3d 1071, 1077 (9th Cir. 2003) ("Prisoners are protected under the Equal Protection Clause from invidious discrimination based on race").

V. CLAIMS FOR RELIEF

COUNT I

First Amendment Retaliation

(42 U.S.C. § 1983 – Against All Defendants)

61. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

62. Plaintiff engaged in constitutionally protected speech by expressing complaints, objections, and concerns regarding his treatment in a mandatory parole program and by state actors. This speech addressed matters of public concern and was protected under the First Amendment.

63. Defendants took adverse actions against Plaintiff, including but not limited to: (a) explicit threats to suppress Plaintiff's speech; (b) denial of reasonable accommodation for job training; (c) revocation of the standard 10-minute grace period in coordination between Defendants Derrick and Palacios; (d) coercive enforcement of program attendance that forced Plaintiff to resign from employment; (e) escalation of supervision from monthly to twice-

monthly visits; (f) imposition of new parole conditions; (g) denial of Plaintiff's request for reassignment to a different parole agent; (h) characterization of Plaintiff as "disruptive" and a "ringleader" in official reports affecting Plaintiff's parole status; and (i) requiring attendance at a PACT meeting reserved for recently released parolees despite Plaintiff's four-and-a-half-year compliance history.

64. Plaintiff's protected speech was a substantial or motivating factor in Defendants' adverse actions. The causal connection is established by: (a) Defendant Derrick's explicit statement linking Plaintiff's speech to threatened consequences; (b) the temporal proximity between Plaintiff's protected speech and the adverse actions; (c) Defendant Palacios's characterization of Plaintiff as a "ringleader" whose speech influenced others; and (d) the pretextual nature of Defendants' justifications.

65. Defendants' conduct chilled Plaintiff's exercise of his First Amendment rights. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment, incarceration, or transfer. Plaintiff's chilling is demonstrated by: (a) abandonment of a written Form 22 complaint due to nervousness and fear; (b) physiological symptoms of anxiety during parole visits, including increased heart rate and shaking hands; (c) providing shorter, more compliant answers during interactions; (d) curtailed participation in HOPE group sessions; and (e) third-party observations by Defendant Palacios, clinician Ms. Jackie, and other participants that Plaintiff spoke less and raised fewer concerns.

66. Defendants' adverse actions did not advance any legitimate penological or supervisory goal. To the contrary, the denial of employment accommodation undermined the

rehabilitative purpose of parole supervision, and the escalation of supervision was imposed without any new violation. See *Johnson v. Ryan*, 55 F.4th 1167, 1201–02 (9th Cir. 2022).

67. The right to be free from retaliation for protected speech was clearly established at the time of Defendants' conduct. See *Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995); *Brodheim v. Cry*, 584 F.3d 1262, 1269–70 (9th Cir. 2009); *Inouye v. Kemna*, 504 F.3d 705, 712–13 (9th Cir. 2007). No reasonable parole official could have believed that explicitly threatening a parolee for exercising First Amendment rights, denying employment accommodations, or escalating supervision based on protected expression was lawful.

COUNT II

Equal Protection – Race-Based Disparate Treatment

(42 U.S.C. § 1983 – Against Defendants Derrick and Palacios)

68. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

69. Plaintiff is a Black male and a member of a protected class under the Equal Protection Clause of the Fourteenth Amendment.

70. Defendants Derrick and Palacios treated Plaintiff less favorably than similarly situated parolees of a different race with respect to: (a) accommodations for employment and scheduling conflicts; (b) supervision frequency and intensity; (c) imposition of additional conditions; and (d) characterization in official reports and communications.

71. As detailed in paragraphs 52 through 60, Comparator A—a white parolee who is similarly situated to Plaintiff, participating in the same HOPE Program, supervised by the same parole agent, and subject to the same parole requirements—received substantially more favorable treatment, including multiple discretionary accommodations such as approval for overnight leisure travel and casino activities, brief respectful visits, and assistance with grievance procedures, without escalation or denial.

72. As detailed in paragraphs 55 through 57, Comparator B—a Black parolee supervised by Defendant Derrick under materially identical conditions—experienced hostile, adversarial treatment mirroring Plaintiff's experience, including extreme disparaging remarks, arbitrary violations resulting in arrest and custody, harassing public confrontations, and a resulting chilling effect on communication with his parole agent.

73. Defendants Derrick and Palacios acted with discriminatory intent, and no rational or legitimate justification explains the disparity in treatment between Plaintiff and similarly situated white parolees. The pretextual justifications offered by Defendants, combined with the pattern of favorable treatment toward white parolees and harsh treatment toward Black parolees, supports an inference of intentional race discrimination. See *Village of Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252, 265–68 (1977).

74. Intentional race-based disparate treatment by government officials violates clearly established law. See *Furnace v. Sullivan*, 705 F.3d 1021, 1030 (9th Cir. 2013); *Whren v. United States*, 517 U.S. 806, 813 (1996) ("the Constitution prohibits selective enforcement of the law based on considerations such as race"); *Serrano v. Francis*, 345 F.3d 1071, 1077 (9th Cir. 2003).

COUNT III

Substantive Due Process – Arbitrary Abuse of Power

(42 U.S.C. § 1983 – Against All Defendants)

75. Plaintiff realleges and incorporates by reference paragraphs 1 through 60 as though fully set forth herein.

76. Alternatively and independently of Plaintiff's First Amendment claim, Defendants' conduct violated Plaintiff's right to substantive due process under the Fourteenth Amendment by abusing governmental authority in an arbitrary and oppressive manner.

77. Defendants acted under color of state law with ample opportunity for actual deliberation in a non-emergent context. Routine meetings between Defendant Derrick, Defendant Palacios, and HOPE staff, as well as coordination before and after CTMs and within the shared parole office (Derrick and Noguchi), provided extended time to consider Plaintiff's supervision and alternatives. Their actions were not the result of negligence or split-second decision-making but reflected deliberate indifference to Plaintiff's constitutional rights.

78. Despite the absence of any new parole violations, documented risk, or safety concerns, Defendants knowingly: (a) denied Plaintiff reasonable accommodation for mandatory employment training, while Defendant Palacios simultaneously granted reduced attendance to another parolee in the same program; (b) revoked Plaintiff's standard 10-minute grace period despite its legitimate use for employment; (c) escalated supervision from monthly to twice-monthly visits; (d) imposed additional parole conditions; (e) forced attendance at a PACT meeting inappropriate for Plaintiff's compliance history; and (f) prolonged supervision through a biased Discharge Review Report.

79. Defendants were aware that these coordinated, deliberate actions would sabotage Plaintiff's lawful employment, stability, and rehabilitation—contrary to CDCR's stated goals of facilitating reintegration and employment—yet proceeded despite less restrictive alternatives being available, such as temporary schedule adjustments.

80. At the CTM and through subsequent approvals, Defendant Noguchi had actual knowledge of the underlying conduct yet ratified and imposed heightened restrictions, acquiescing in the oppression.

81. This arbitrary use of parole authority as an instrument of punishment rather than supervision shocks the conscience, was intended to injure Plaintiff without legitimate governmental purpose, and constitutes unconstitutional abuse of power. See *County of Sacramento v. Lewis*, 523 U.S. 833, 846–47 (1998); *Porter v. Osborn*, 546 F.3d 1131, 1137 (9th Cir. 2008) ("Where actual deliberation is practical, then an officer's deliberate indifference may suffice to shock the conscience").

82. No reasonable official could believe such conduct was lawful.

VI. DAMAGES

83. As a direct and proximate result of Defendants' acts and omissions, Plaintiff suffered actual, compensatory, and consequential damages, including but not limited to economic loss, emotional distress, reputational harm, and deprivation of liberty interests.

A. Economic Damages (Past and Ongoing)

84. Plaintiff suffered lost wages and employment opportunities as a result of Defendants' retaliatory and arbitrary conduct. In or about March 2025, Plaintiff received an offer of employment from FedEx Office for the position of Retail Customer Service Associate, with a guaranteed rate of $20.00 per hour and approximately thirty (30) hours per week.

85. Plaintiff began required training on or about April 1, 2025. Defendants denied Plaintiff reasonable accommodation from mandatory HOPE program attendance despite knowing that the training schedule conflicted with rigid program requirements and that late arrival would result in denial of entry and a parole violation.

86. As a direct result of Defendants' denial of accommodation and the coercive enforcement of program attendance, Plaintiff was forced to resign from the FedEx Office position on or about April 17, 2025, in order to avoid the risk of parole violation and incarceration. But for Defendants' denial of accommodation, Plaintiff would have continued employment.

87. Plaintiff suffered past lost wages of no less than approximately $1,500 as a result of this forced resignation.

88. Plaintiff continues to suffer ongoing and future lost income as a result of Defendants' conduct. Mandatory program scheduling and escalated supervision continue to restrict Plaintiff's ability to maintain multiple employment opportunities and to complete full work shifts, resulting in continuing lost income estimated at approximately $600 per week, or approximately $2,600 per month, according to proof.

89. Plaintiff also suffered the loss of training time, professional opportunity, and advancement prospects associated with the FedEx Office position, as well as loss of managerial trust and future employment references.

B. Loss of Liberty and Increased Supervision

90. Defendants imposed increased parole supervision, escalating Plaintiff's required parole visits from once per month to twice per month without legitimate justification or new violation.

91. This escalation constituted a tangible deprivation of Plaintiff's liberty interests, increased Plaintiff's exposure to technical violations, and interfered with Plaintiff's employment, family life, and ability to live without constant fear of punitive consequences.

92. Defendants further threatened Plaintiff with incarceration or forced transfer to another county if his protected speech did not cease, and denied Plaintiff's in-person request for reassignment to a different parole agent despite clear evidence of retaliatory conflict.

C. Emotional Distress and Mental Anguish

93. As a result of Defendants' conduct, Plaintiff suffered significant and ongoing emotional distress, including anxiety, panic, depression, sleep disruption, hypervigilance, and fear of speaking.

94. Following a containment meeting and subsequent escalation of supervision, Plaintiff lived under constant apprehension that any misstep—real or perceived—could result in incarceration or removal from his stable residence. Parole visits became a source of fear and

humiliation, often occurring in a manner that disrupted Plaintiff's household and caused distress to family members.

95. Plaintiff's emotional distress directly interfered with his ability to work and function normally, including causing him to miss scheduled employment on or about December 31, 2025 due to acute anxiety and depression.

96. Plaintiff altered his speech and behavior out of fear of further retaliation, sacrificing his ability to speak freely in a mandatory program in order to avoid punishment. Plaintiff's emotional injuries are ongoing.

D. Reputational and Professional Harm

97. Plaintiff was labeled as "disruptive" and "non-compliant" by HOPE Program staff, and that characterization was communicated to new clinicians and personnel.

98. These labels damaged Plaintiff's professional reputation, undermined trust placed in him by employers, and resulted in the loss of a valuable employment reference from FedEx Office, as well as ongoing stigma associated with Plaintiff's parole record.

E. Punitive Damages

99. Defendants acted willfully, maliciously, and with reckless and callous indifference to Plaintiff's clearly established constitutional rights. See *Smith v. Wade*, 461 U.S. 30 (1983) (punitive damages available for conduct motivated by evil motive or intent, or reckless or callous indifference to federally protected rights).

100. Defendants explicitly referenced Plaintiff's protected speech when imposing adverse consequences, continued retaliatory conduct after Plaintiff objected and requested reassignment, and ratified unconstitutional actions at the supervisory level despite having lawful alternatives available.

101. As a result, Plaintiff is entitled to an award of punitive damages against the individual Defendants in an amount sufficient to punish and deter similar misconduct.

F. Reservation of Proof

102. Plaintiff seeks compensatory and punitive damages according to proof, including interest, costs, and attorneys' fees pursuant to 42 U.S.C. § 1988.

VII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI respectfully requests that this Court:

A. Enter judgment in favor of Plaintiff and against Defendants on all claims;

B. Award Plaintiff compensatory damages for economic loss, emotional distress, loss of liberty, and reputational harm, according to proof;

C. Award Plaintiff punitive damages against individual Defendants in an amount sufficient to punish and deter similar misconduct;

D. Issue a declaratory judgment that Defendants' conduct violated Plaintiff's rights under the First and Fourteenth Amendments to the United States Constitution;

E. Award Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

F. Award Plaintiff pre-judgment and post-judgment interest as allowed by law; and

G. Grant such other and further relief as this Court deems just, proper, and equitable.

VIII. JURY DEMAND

Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: January 13, 2026

Respectfully submitted,

BRENDAN NGEHSI NEWANFORBI

Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

PROOF OF SERVICE

Case: 2:26-cv-00004-DJC-JDP	Court: UNITED STATES EASTERN DISTRICT OF CALIFORNIA	County: SAN JOAQUIN	Job: 14927761
Plaintiff / Petitioner: BRENDAN NGEHSI NEWANFORBI		Defendant / Respondent: AGENT A. DERRICK #6910	
Received by: Adamant Process Service		For: Brendan Ngehsi Newanforbi	
To be served upon: AGENT A. DERRICK #6910 Parole Agent California Department of Corrections and Rehabilitation, in his individual capacity			

I, Brian Banks, being duly sworn, depose and say: I am over the age of 18 years and not a party to this action, and that within the boundaries of the state where service was effected, I was authorized by law to make service of the documents and informed said person of the contents herein

Recipient Name / Address: AGENT MRS SOSA
612 Carlton Avenue
Stockton, CA 95203

Manner of Service: PERSONAL SERVICE AT GOVERMENT AGENCY, JAN 6TH, 2026 AT 2:04PM

Documents: SUMMONS AND COMPLAINT (Received Jan 6, 2026 at 10:00am PST)

Additional Comments:
LEFT DOCUMENTS WITH AGENT SOSA ON THE SECOND FLOOR OF THE PAROLE OFFICE.

Fees: 200

01/07/2026

Brian Banks
1683

Date

Adamant Process Service
5580 ALTA MESA LN, ANTIOCH, CA 94531
(925) 237-1811

ServeIT by InfoTrack

PROOF OF SERVICE

Case: 2:26-cv-00004-DJC-JDP	Court: UNITED STATES EASTERN DISTRICT OF CALIFORNIA	County: SAN JOAQUIN	Job: 14927761
Plaintiff / Petitioner: BRENDAN NGEHSI NEWANFORBI		Defendant / Respondent: AGENT G. NOGUCHI #7284	
Received by: Adamant Process Service		For: Brendan Ngehsi Newanforbi	
To be served upon: AGENT G. NOGUCHI #7284 , Supervising Parole Agent California Department of Corrections and Rehabilitation, in his individual capacity			

I, Brian Banks, being duly sworn, depose and say: I am over the age of 18 years and not a party to this action, and that within the boundaries of the state where service was effected, I was authorized by law to make service of the documents and informed said person of the contents herein

Recipient Name / Address: AGENT MRS SOSA
612 Carlton Avenue
Stockton, CA 95203

Manner of Service: PERSONAL SERVICE AT GOVERMENT AGENCY, JAN 6TH, 2026 AT 2:04PM

Documents: SUMMONS AND COMPLAINT (Received Jan 6, 2026 at 10:00am PST)

Additional Comments:
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01/08/2026

Brian Banks
1683

Date

Adamant Process Service
5580 ALTA MESA LN, ANTIOCH, CA 94531
(925) 237-1811

PROOF OF SERVICE

Case: 2:26-cv-00004-DJC-JDP	Court: UNITED STATES EASTERN DISTRICT OF CALIFORNIA	County: SAN JOAQUIN	Job: 14927761
Plaintiff / Petitioner: BRENDAN NGEHSI NEWANFORBI		Defendant / Respondent: KATIE PALACIOS	
Received by: Adamant Process Service		For: Brendan Ngehsi Newanforbi	
To be served upon: KATIE PALACIOS, Director, HOPE Program (Stockton, California), in her individual capacity;			

I, Brian Banks, being duly sworn, depose and say: I am over the age of 18 years and not a party to this action, and that within the boundaries of the state where service was effected, I was authorized by law to make service of the documents and informed said person of the contents herein

Recipient Name / Address: KELLY PHAYSALEUM 5403 N Pershing Ave. Ste 200. Stockton, CA 95207

Manner of Service: PERSONAL SERVICE AT GOVERMENT AGENCY, JAN 6TH, 2026 AT 2:33PM

Documents: SUMMONS AND COMPLAINT (Received Jan 6, 2026 at 10:00am PST)

Additional Comments:
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Fees: 200

01/08/2026

Brian Banks
1683

Date

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1455 Cat Tail Drive
Stockton, CA 95204

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TO:

California Attorney General
1300 I Street Ste 1740
Sacramento, CA 95814

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1455 Cat Tail Drive
Stockton, CA 95204

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1300 I Street Ste 1740
Sacramento, CA 95814

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CERTIFICATE OF SERVICE

Case Name: **Brendan Ngehsi Newanforbi (BF3571) v. Andrew Derrick, et al.** No. **2:26-cv-00004-DJC**

I hereby certify that on January 30, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

- **NOTICE OF MOTION AND MOTION TO QUASH INSUFFICIENT SERVICE OF PROCESS OR, IN THE ALTERNATIVE, DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF; DECLARATION OF DEPUTY ATTORNEY GENERAL ERICK J. RHOAN**
- **DECLARATION OF DEPUTY ATTORNEY GENERAL ERICK J. RHOAN IN SUPPORT OF DEFENDANTS' MOTION TO QUASH INSUFFICIENT SERVICE OF PROCESS OR, IN THE ALTERNATIVE, DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT**

Participants in the case who are registered CM/ECF users will be served by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on January 30, 2026, at Fresno, California.

L. Lambert-Martinez	***/s/ L. Lambert-Martinez***
Declarant for eFiling	Signature

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

I further certify that some of the participants in the case are not registered CM/ECF users. On January 30, 2026, the foregoing document(s) have been mailed in the Office of the Attorney General's internal mail system, by First-Class Mail, postage prepaid, or have dispatched it to a third party commercial carrier for delivery within three (3) calendar days to the following non-CM/ECF participants:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95205
In Pro Se

I further certify that I served the following on Plaintiff:

- **UNPUBLISHED OPINIONS:**
  - ***Loftis v. Montes, et al.*, Case No. 2:18-cv-4769-JFW (GJS), 2019 WL 3802187**
  - ***Loftis v. Montes, et al.*, Case No. 2:18-cv-4769-JFW (GJS), 2019 WL 3806388**

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on January 30, 2026, at Fresno, California.

J. Carlton	***/s/ J. Carlton***
Declarant for Service by U.S. Mail	Signature

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